

SAAS SUBSCRIPTION AGREEMENT

SaaS Agreement · Parties: Nexus Analytics, a Delaware corporation ("Provider")

65

High Risk Score

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⚠ Synth is not legal advice or financial advice. It is a document review aid. Consult a qualified professional before making decisions.

Executive Summary

This SaaS Agreement has been reviewed by Synth in mock mode. The document contains several clauses that warrant attention, including payment terms, termination provisions, and liability limitations. This is a demonstration analysis — no actual AI analysis was performed. Review all findings with a qualified professional.

Key Terms

Field	Value
Payment Terms	\$4,500 per month (the "Subscription Fee"), billed annually in advance
Renewal Terms	automatically renew for successive one-year periods (each a "Renewal Term") unless Customer provides written notice of cancellation at least ninety (90) days

prior to the end of the then-current term

Termination	Either party may terminate this Agreement for material breach upon sixty (60) days written notice if the breach is not cured within such period
Governing Law	governed by the laws of the State of Delaware, without regard to conflict of l
Liability	IN NO EVENT SHALL PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR BUSINESS OPPORTUNITIES, EVEN IF PROVIDER HAS BEEN ADVISED OF THE POS
Indemnification	Indemnification provisions present. Review scope and carve-outs with legal counsel.
Confidentiality	Each party agrees to maintain the confidentiality of the other party's Confidential Information and not to disclose such information to any third party without prior written consent

Key Dates

Date	Description
See document	Effective Date
See document	Initial Term End

Risk Matrix

High Unilateral Modification Rights

Why it matters: Material terms could change after signing without recourse.

Provider may be able to modify terms without customer consent.

"automatically renew for successive one-year periods (each a "Renewal Term") unless Customer provides written notice of cancellation at least ninety (90) days prior to the end of the then-current term"

Suggested next step: Request a mutual written amendment requirement.

High Limited Liability Cap

Why it matters: Company may have no meaningful recourse for serious failures.

Liability may be capped at a small fraction of potential damages.

"IN NO EVENT SHALL PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR BUSINESS OPPORTUNITIES, EVEN IF PROVIDER HAS BEEN ADVISED OF THE POS"

Suggested next step: Negotiate a higher cap and carve-outs for willful misconduct.

Medium Auto-Renewal with Short Notice

Why it matters: Missing the notice window locks in another full term.

Agreement auto-renews unless cancelled within a specific window.

"automatically renew for successive one-year periods (each a "Renewal Term") unless Customer provides written notice of cancellation at least ninety (90) days prior to the end of the then-current term"

Suggested next step: Calendar the cancellation deadline immediately.

Missing & Unusual Clauses

Missing Clauses

- Force majeure clause (not clearly present)
- Data processing agreement / GDPR addendum
- SLA / uptime guarantees

Unusual Clauses

- Unilateral modification rights may allow changes without consent
- Review auto-renewal notice window carefully

Action Items

1. Review all payment and fee terms with finance team
2. Calendar all notice and cancellation deadlines

3. Have legal counsel review liability and indemnification provisions
4. Request data processing agreement if applicable
5. Verify governing law is acceptable for your jurisdiction

Citations

Mock Mode Notice

"This analysis was generated in mock mode. No AI provider was used."

All findings are illustrative. Run with a real provider for document-specific analysis.

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